

24STCV24321 24STCV24321

County: los-angeles

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Case Number: 24STCV24321 Hearing Date: September 4, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

RICHARD IRWIN,

Plaintiff,

v.

3M COMPANY, et al.

Defendants.

Case No. 24STCV24321

Hearing Date: September 4, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

AUTOZONE WEST, LLC'S MOTION FOR SUMMARY
JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

I.

Background

On September 19, 2024, Plaintiff Richard Irwin filed his complaint for personal injury alleging he developed malignant mesothelioma through his work in the oil, auto repair, and construction industries beginning in the 1970s.

On June 11, 2026, Defendant Autozone West, LLC ("Defendant" or "Autozone") filed its motion for summary judgment or, in the alternative, summary adjudication arguing that Plaintiff cannot prove exposure to asbestos from a product sold, supplied, or distributed by Autozone. Autozone also moves for summary adjudication of the cause of action for intentional concealment and the demand for punitive damages.

On August 14, 2026, Plaintiff opposed, arguing that triable issues of material fact remain as to whether he was exposed to an asbestos-containing product for which Autozone is responsible.

On August 24, 2026, Autozone replied, reiterating arguments from its moving papers.

Autozone failed to meet its initial burden to provide affirmative evidence negating an essential element of Plaintiff's claims against Autozone. Autozone's motion for summary judgment is denied. Plaintiff did not oppose Autozone's motions for summary adjudication. Autozone's motions for summary adjudication of the cause of action for intentional concealment and the demand for punitive damages are granted.

II.

Evidentiary Objections

Plaintiff's Objections

Plaintiff objects to

excerpts from the deposition of Allen Berger taken in Ruiz v. 3M Company, et al., LASC Case No. 23GDCV005 I 6, on November 22, 2023. This testimony is hearsay. Autozone fails to identify a valid hearsay exception to support the admissibility of this prior testimony. Autozone fails to rebut the general rule against the admissibility of former deposition testimony. (Berroteran v. Superior Court (2022) 12 Cal.5th 867, 895 [“The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony.”].) Autozone offers no evidence or argument to support the admissibility of this deposition and do not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the Berroteran factors bear in favor of the admissibility of the deposition. The objections are sustained.

Defendant's Objections

Autozone

objects to evidence Plaintiff submitted with his opposition. Because Autozone failed to meet its initial moving burden, the court need not determine whether the evidence submitted by Plaintiffs in opposition to Autozone's motion was admissible.

III.

Discussion

A.

Legal Standard

A defendant seeking

summary judgment must “conclusively negate[] a necessary element of the plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's

cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure to the defendant’s defective asbestos-containing products” and must further establish to a “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.)

Where a

plaintiff’s allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence “defendant’s product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it...” (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420.].) Where a defendant manufactures similar products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant’s product. (See Collin v. CalPortland Co. (2014) 228 Cal.App.4th 582, 593.)

1.

Defendant’s Burden: Affirmative Evidence

Autozone moves for

summary judgment on the grounds that Plaintiff has no evidence that he worked with an asbestos-containing product for which it was responsible. (Motion at p. 11 [“Here, there is no evidence that Autozone West supplied a product that contained asbestos that Mr. Irwin worked with or around. (SSUF No.’s 1 - 19). There is no evidence that he was ever exposed to any asbestos from work with or around an Autozone West product, let alone exposure with sufficient frequency and regularity so as to show a reasonable medical probability that this exposure was a factor in causing his injury.”].)

A defendant moving

for summary judgment normally submits either (1) the plaintiff’s factually devoid discovery responses, which support an inference that the plaintiff lacks and cannot reasonably obtain evidence to support a cause of action against the defendant, or (2) affirmative evidence that negates an element of the plaintiff’s case or demonstrates that no triable issue of material fact remains in the case. (It may, of course, offer both.) Autozone elected option two.

Autozone argues

here that its affirmative evidence shows that Autozone was not liable for Plaintiff’s injuries. Specifically, Autozone argues that Plaintiff could not have been exposed to an asbestos-containing Autozone part in 1987 because its predecessor, Chief Auto Parts, Inc. (“Chief” or “Chief Auto Parts”) was established in 1988, did not sell asbestos-containing parts, and did not become Autozone until 1997. (Id. at p. 7 [“As further detailed herein, Chief Auto Parts, Inc. was established in 1988 and ultimately became Autozone West, LLC...Autozone West did not exist until 1997...Chief Auto Parts, Inc. did not sell any asbestos brakes, clutches, or gaskets...The Autozone stores in California were previously Chief Auto stores that were converted... Thus, there is no evidence that the Autozone store sold an asbestos containing product...Autozone West has submitted affirmative evidence it did not sell an asbestos containing product....Thus, Autozone West has no liability in this matter and is entitled to summary judgment in this matter.”].)

Autozone

reiterates arguments from its moving papers in the reply.

i. Analysis

Autozone moves for

summary judgment on the grounds that its affirmative evidence establishes that Plaintiff could not have been exposed to an asbestos-containing Autozone part, negating an essential element of Plaintiff's claim against it. Autozone alleges that Chief was not established until 1988, a year after Plaintiff's alleged visit to a Chief store in Oxnard. Additionally, Autozone alleges Chief never sold asbestos-containing parts.

Autozone directs

the court's attention to Plaintiff's deposition testimony wherein he testified that he had no memory of ever going to an Autozone store in California before 1987. (UMF No. 11, Barba Decl., Exh. 7 at 741:3-741:6 ["Q: Do you have a memory of ever going to an Auto Zone – in the state of California prior to the year of 1987? A: No.].) Plaintiff also testified that he visited a Chief Auto Parts store, Autozone's predecessor, in his late 20s to purchase parts. (Id., Exh. 6 at 758:19-759:5 ["Q: Okay. The Oxnard location, did you personally ever purchase any parts from that Chief Auto Parts location, or was it just your dad? A: With my dad. That was it. Q: Okay. And you would have gone there as a kid then, I take it? A: No. I wasn't that young. I was probably in my late 20s...Q: Okay. Late 20s like 27, 28? A: Yep."].) Plaintiff was born in 1959. (Id., Exh. 6 at 138:16-17.) Autozone provides this evidence to show that Plaintiff visited Chief stores between 1986 and 1987 and had not visited an Autozone store before 1987.

Autozone

provides the prior deposition testimony of Allen Berger, its corporate representative, from an unrelated case to show that Chief Auto Parts was established in 1988, did not sell asbestos-containing parts, and eventually became part of Autozone in 1997. (UMF Nos. 13-15, Barba Decl., Exh. 8.) However, the court sustained Plaintiff's objections to this evidence. There is no other evidence that Chief Auto Parts was established in 1988 or that it never sold asbestos-containing parts. Accordingly, Autozone fails to meet its burden to negate an essential element of Plaintiff's claim against it. The motion for summary judgment is denied.

C.

Summary Adjudication

Autozone

also moves for summary adjudication of the cause of action for intentional

concealment and the demand for punitive damages. Plaintiff did not oppose the motion as to the demand for punitive damages and did not address intentional concealment. Accordingly, the motions for summary adjudication are granted as unopposed.

IV.

Conclusion

Autozone failed to meet its initial burden to provide affirmative evidence negating an essential element of Plaintiff’s claims against Autozone. Autozone’s motion for summary judgment is denied. Plaintiff did not oppose Autozone’s motions for summary adjudication. Autozone’s motions for summary adjudication of the cause of action for intentional concealment and the demand for punitive damages are granted.

Autozone to give notice.

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SUPERIOR COURT OF THE STATE OF
CALIFORNIA,)

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14,)

)

RICHARD IRWIN,

Plaintiff,)

v.

3M COMPANY, et al.

Defendants.)

Case No. 24STCV24321

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Hearing Date: September 4, 2026

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٢ [TENTATIVE] ORDER

RE:٢

HENRY COMPANY, LLC'S MOTION FOR SUMMARY
JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

I.

Background

On September 19, 2024, Plaintiff Richard Irwin filed his complaint for personal injury alleging he developed malignant mesothelioma through his work in the oil, auto repair, and construction industries beginning in the 1970s.

On June 11, 2026, Defendant Henry Company, LLC ("Henry" or "Defendant") moved for summary judgment or, in the alternative, summary adjudication on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-containing product for which it was responsible. Alternatively, Henry moves for summary adjudication of Plaintiff's demand for punitive damages.

On August 14, 2026, Plaintiff opposed, arguing that Henry failed to shift its burden on summary judgment and that his discovery responses contained sufficient facts to support his claims against Henry. Plaintiff also argues that there is sufficient affirmative evidence to establish that he was exposed to an asbestos-containing Henry product.

On

August 24, 2026, Henry replied, reiterating arguments from its moving papers.

Henry meets its initial burden to show that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-containing product for which Henry was responsible. Plaintiff fails to

present affirmative evidence to support his claims. Henry's motion for summary judgment is granted. Henry's motion for summary adjudication is moot.

II.

Evidentiary Objections

Defendant's Objections

1.

Henry objects to Plaintiff's declaration submitted in opposition to the motion for summary judgment. Henry argues that the declaration is inadmissible under the rule articulated in *D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1 because the declaration contradicts Plaintiff's earlier deposition testimony that he did not recall what number of Henry product he used.

Under

the *D'Amico* rule, when a party's admission "is obtained not in the normal course of human activities and affairs but in the context of an established pretrial procedure whose purpose is to elicit facts," this admission "is entitled to and should receive a kind of deference not normally accorded evidentiary allegations in affidavits." (*D'Amico*, supra, 11 Cal.3d at p.23.) In other words, a party may not create an issue of fact on summary judgment by a declaration that contradicts prior deposition testimony unless the contradiction is explained. (*Preach v. Monter Rainbow* (1993) 12 Cal.App.4th 1441, 1451 ["In determining whether any triable issue of material fact exists, the trial court may, in its discretion, give great weight to admissions made in deposition and disregard contradictory and self-serving affidavits of the party."]; see also *Niederer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1502.)

Here,

Plaintiff testified at his deposition in August 2025 that he did not recall the product numbers on the cans of Henry roofing mastic that he used. (Huie Decl., Exh. G at 1119:25-1120:7 ["Q:...I think you discussed this before, but I'm going to ask you specifically for the...can of Henry product that you used at the Ramona Street address, do you recall any product numbers on the can? A: No, just the name. Blue and white can with the name Henry on it."].) Plaintiff's September 4, 2026 declaration now states that Plaintiff reviewed photographs of Henry's products and now recalls that the product he used was Henry 204 Plastic Roofing

Cement. (Eyerly Decl., Exh. 5 at ¶4.) This statement directly contradicts Plaintiff's prior deposition testimony and is inadmissible under the D'Amico rule. The objection is sustained.

2.

Henry also objects to a scientific article, Plaintiff's Exhibit 6. The court declines to rule on this objection because the evidence was not material to the court's analysis.

III.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must "conclusively negate[] a necessary element of the plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial." (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing "that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (*Id.* at p. 855.) " 'If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff's factually devoid discovery responses.' " (*Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos

litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure to the defendant's defective asbestos-containing products” and must further establish to a “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.)

Where a

plaintiff's allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence “defendant's product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it...” (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420].) Where a defendant manufactures similar products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant's product. (See Collin v. CalPortland Co. (2014) 228 Cal.App.4th 582, 593.)

1.

Defendant's Burden: Factually Devoid

Henry moves for

summary judgment on the grounds that Plaintiff's discovery responses are devoid of facts supporting his claim that he was exposed to an asbestos-containing Henry product. (Motion at p.8 [“Henry has shown through Plaintiff's factually devoid discovery responses and the deposition testimony in this case that Plaintiff has no evidence, and will not be able to obtain any evidence, to support his claim that he ever worked with or around an asbestos-containing Henry product. Although Plaintiff's responses to discovery generally alleged that Mr. Irwin worked with an asbestos-containing Henry roofing mastic, Plaintiff did not identify the particular Henry product purportedly at issue or provide any other details like a description of the product or product number...Mr. Irwin also testified under oath during his deposition that he did not know the product number for the Henry roofing mastic he worked with or around...This is critical because not all Henry roofing mastics contained asbestos.”].)

In opposition,

Plaintiff argues that he adequately identified the Henry product that he used and submitted affirmative evidence supporting his claim that he was exposed to an asbestos-containing Henry product. (Opp. at p. 10 [“Defendant argues that Mr. Irwin could identify the specific roof cement products used in this case. This is simply not true. At his deposition, Mr. Irwin used “Henry” roof cement. He described the color and size of the packaging. Then, when shown photographs, Mr. Irwin identified Henry 204 roof cement as the product he used on his house and trailer from 1981/1982 to 2001. And, in any event, Defendant’s own PMK admits that if someone was working with Henry’s roof cement from 1981 to 1998 it would have been asbestos-containing unless it was Henry 108 Lap Cement. Further, Henry 204 and Henry 208 comprised the vast majority of all Henry roof cement sold from 1981 through 2004, both of which contained asbestos.”].)

In reply, Henry

reiterates arguments from its moving papers and argues that Plaintiff’s evidence is insufficient to raise a triable issue of material fact. (Reply at pp.4-9.)

i. Analysis

Henry moves for

summary judgment on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-containing Henry product. When Henry asked Plaintiff to state “all facts” that support Plaintiff’s contention that he “was exposed to asbestos from products MANUFACTURED by HENRY COMPANY LLC,” Plaintiff responded in pertinent part:

“Based upon

current information and belief, Plaintiff was exposed to Defendant HENRY COMPANY LLC’s asbestos and asbestos containing products while working in Southern California, beginning in the 1970s and throughout the 1980s. During this time, Mr. Irwin performed various remodel and repair work to his home, and on family residential properties. Mr. Irwin recalls doing patching work, drywall work, roof work, plumbing, and painting. Plaintiff recalls using products including, but not limited to, Henry roof mastic during this time. In his deposition, Mr. Irwin testified that after applying the mastic/sealant with a putty knife or by hand, there would be product residue remaining on his skin, arms, and clothing that would eventually dry and require removal with a brush. Mr. Irwin recalled smelling and breathing in the dry residue that became

airborne as he was removing it.

During the course

and within the scope of this work, Plaintiff was exposed to products such as joint compound, roof materials, and stuccos, including roof mastic manufactured, sold, supplied, and/or distributed by Defendant HENRY COMPANY LLC, including any of its predecessors in interest.

When these

aforementioned asbestos-containing products were manipulated in foreseeable ways, such as mixing, installation, removal, replacement, and cleaning up, respirable asbestos dust was created which Plaintiff breathed. Each of Defendant's asbestos and asbestos-containing products that entered Plaintiff's body was a substantial factor in increasing his risk of lung cancer."

(Huie Decl., Exh. E

at pp.7-8.) The response also identified Henry's employees, Plaintiff's coworkers, Defendant's documents, and transcripts of prior depositions of Defendant's corporate representatives as sources of evidence supporting Plaintiff's claims.

(Id.)

Plaintiff testified at his

deposition that he first began using Henry roofing mastic in 1968 or 1969 when he helped his father replace a roof at their home on Masa Street. (Huie Decl., Exh. G at 1061:18-1062:18, 1086:18-10871.) The product was generally black and had a thick texture like grease. (Id. at 1095:18-1096:6.) The product was a wet, sticky, goopy substance that was packaged in black, white, and dark blue cans. (Id. at 1096:14-1097:2.) Plaintiff could only remember the Henry name written on the cans and did not recall what any writing on the cans said. (Id. at 1097:3-15 ["Q: Was there any numbers on them, if you recall? A: Could be. Just had a big name, Henry. You'd always remember that for years. I used that hundreds of times over the years...Q: Other than Henry's on the cans, was there any writing that you saw on the cans? A: Small writing, but I don't know what it said."].) Plaintiff did not know if the product contained asbestos. (Id. at 1101:24-1102:4.)

Plaintiff next used

the product ten times between 1980 and 2001 when he lived on East Ramona Street. (Huie Decl., Exh. G at 1104:18-25.) Plaintiff used five gallon and one gallon cans on the home at Masa Street and a one gallon can at the home on Ramona Street. (Id.

at 1115:1-18.) Plaintiff last used a Henry roofing mastic around 2020 and 2021 when he used a white Henry roofing mastic to seal the roofs on trailers and motorhomes. (Id. at 1121:1-1122:18.) Plaintiff could not recall any product numbers on the white mastic. (Id.)

Henry also submits

the prior deposition testimony of a corporate representative, Ariel Lender, from another matter. (Huie Decl., Exh. H.) This testimony indicates that beginning in the early 1980s, Henry started to substitute a non-asbestos version of its roofing cement in addition to the asbestos version, which were products 204 and 208. Mr. Lender testified that Henry 204 is a plastic roof cement that came packaged in half gallons, five gallons, and 50 gallon metal buckets. (Id. at 89:21-90:4.) Henry 208 was also plastic roof cement that was marketed to be applied on wet surfaces. (Id. at 96:8-24.)

Henry 208 was packaged in quart, gallon, three and a half gallon, and five gallon metal buckets. (Id. at 97:4-8.) Henry also made Henry 504 and 508 products as non-asbestos cements analogous to Henry 204 and 208 respectively. (Id. at 123:3-11 [“Q: ...you mentioned additional roofing cements that were non-asbestos-containing manufactured by Henry from 1981 to 2004. Can you identify those products for us. A: Yes. That would be 504 was the non-asbestos analogous product to 204; 508 was the non-asbestos analogous product to 208;...”].) Mr. Lender testified that it made a non-asbestos version of Henry 204 because it had difficulties purchasing asbestos. (Id. at 127:9-20

[“Q...Why did Henry create a non-asbestos version of the 204 in the 1980s? A: Well, as I said, there was potential issues with supply, and we wanted to have the ability to alternate products in the event that the asbestos supply ran dry so we had business protection on a – functionally equivalent product. Q: You say ‘potential issues with supply’ in the 1980s? A: Yes. At times, there was some difficulty purchasing asbestos.”].) The non-asbestos products were packaged in the same packaging as the asbestos-containing products. (Id. at 125:20-126:1 [“Q:...how is the 504 packaged? A: In metal containers; same containers that the asbestos-bearing products are packaged, same type of containers. Q: 508 packaging was what? A: Quarts—or gallons; five gallon pails predominantly.”].)

Henry meets its

initial burden to show that Plaintiff lacks and cannot reasonably obtain evidence to support his contention that he was exposed to an asbestos-containing Henry product. Because Henry contends it made both asbestos-containing and non-asbestos-containing versions of the product at

issue, Plaintiff's discovery were required to set forth facts from which the court can reasonably infer that it was more likely than not that he was exposed to an asbestos-containing variety of Henry's product. (See Collin, supra, 228 Cal.App.4th at p.593.)

Plaintiff's

interrogatory responses were devoid of facts supporting his claim that he was exposed to an asbestos-containing Henry product because the response fails to state the factual basis for Plaintiff's contention that the roofing mastic he used contained asbestos. (Huie Decl., Exh. E at pp.7-8.) Additionally, Plaintiff testified that he could only remember the size of the container the mastic came in, that the mastic he used before 2020 was black, that the mastic was a wet grease-like substance, and that the packaging was dark blue with white letters spelling the Henry name. (Id., Exh. G at 1095:18-1096:6, 1096:14-1097:2, 1097:3-15, 1115:1-18.) This information is insufficient to identify whether the mastic Plaintiff used was the asbestos-containing version because the asbestos and non-asbestos versions of the mastic were sold in the same packaging. (Id., Exh. H at 125:20-126:1.) As for the white mastic Plaintiff began using in 2020, Plaintiff could not recall what product number the white mastic was. (Id., Exh. G at 1121:1-1122:18.) The discovery record therefore contains no evidence from which the court may reasonably infer that Plaintiff more likely than not was exposed to the asbestos-containing version of Henry's roofing mastic. Plaintiff's factually devoid discovery responses and deposition testimony support an inference that Plaintiff lacks and cannot reasonably obtain evidence to support his claims against Henry. Henry meets its moving burden on summary judgment. The burden shifts to Plaintiff.

2.

Plaintiff's Burden

Plaintiff fails to

present affirmative evidence to support his contention that he used an asbestos-containing version of the Henry roofing mastic he alleges caused his injuries. Plaintiff directs the court's attention to additional excerpts of Plaintiff's deposition transcript confirming largely the same information Henry provided in the moving papers, including when Plaintiff used the product, how Plaintiff applied the product, and Plaintiff's description of the product and its packaging. (AUMF Nos. 1-16; Eyerly Decl., Exhs. 1-3.) These transcripts do not show that Plaintiff used an

asbestos-containing version of the roofing mastic.

Plaintiff also submits additional excerpts from Mr. Lender's deposition. (Eyerly Decl., Exh. 4.) Plaintiff directs the court's attention to a portion of the transcript where Mr. Lender appears to admit that any roofing cement a roofer used between 1981 to 2004 would have been the asbestos-containing version of the cement unless they were using the Number 108 Lap Cement. (Id. at 29:25-30:4 ["Q: If an individual worker were using a Henry Co. roof cement product, they were using an asbestos-containing product from 1981 to 2004 unless they were using the Number 108 Lap Cement; fair? A: Fair."].) However, as Henry points out in the reply, Mr. Lender later clarified that he misspoke and that Henry sold roof cements that did not contain asbestos between 1981 and 2004. (Rankin Decl., Exh. 1 at 59:15-60:10 ["I believe your question was that between 1981 and 2004, that if someone purchased a roof cement, that it would contain asbestos, and that's...not true. I was really focusing on this table of contents which these particular products, with the exception of 108, did, in fact contain asbestos. But between 1981 and 2004, Henry sold roof cements that also did not contain asbestos during that period between '81 and 2004."].)

Plaintiff also directs the court's attention to the portion of Mr. Lender's testimony wherein Mr. Lender states the asbestos-containing versions of the roofing mastics sold between 1981 and 1998 accounted for the majority of Henry's roofing cement sales. (AUMF No. 27; Eyerly Decl., Exh. 4 at 86:16-87:25 ["Q: From 1981 to 1998, can you estimate for me the percentage of sales of 204 as opposed to the other products?...A: It was the majority compared to the others, but I wouldn't say more than 50 percent...Q: If we take 208 and 204 together, would you agree with me that from 1981 to 1998, that that was the overwhelming majority of the Henry Co. sales as it relates to the roofing cement division?...A: I wouldn't use the word overwhelming, but I would say majority."].) Although Plaintiff argues that the asbestos-containing mastics accounted for over 75% of Henry's sales, Mr. Lender only testified that the two asbestos-containing mastics accounted for the majority of sales without specifying a percentage. Even if it was true that the asbestos-containing mastics accounted for 75% of sales, the fact that customers bought more of Henry 204 and 208 than Henry's other products alone is insufficient to support a reasonable inference that the version Plaintiff used was asbestos-containing. Accordingly, Mr. Lender's deposition testimony does not establish whether or not Plaintiff was exposed to the asbestos-containing version of the Henry roofing mastic.

Plaintiff also argues that he now recalls that he used Henry 204 after reviewing photographs of Henry products. (Eyerly Decl., Exh. 5.) The court sustained Henry's objection to Plaintiff's declaration because it contradicted Plaintiff's earlier testimony that he could not recall the product number for the roofing mastic he used.

Plaintiff fails to present affirmative evidence supporting his claim that he was exposed to an asbestos-containing Henry product and fails to meet his burden on summary judgment. Henry's motion for summary judgment is granted. The motion for summary adjudication is moot. The court declines to reach the parties' arguments on the issue of whether Plaintiff's exposure to the roofing mastic was a substantial factor in causing his injuries.

IV.

Conclusion

Henry meets its initial burden to show that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-containing product for which Henry was responsible. Plaintiff fails to present affirmative evidence to support his claims. Henry's motion for summary judgment is granted. Henry's motion for summary adjudication is moot.

Henry to give notice.